

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST

COMPLAINANT,

v.

APS EAST COAST, INC.

RESPONDENT.

**RESPONDENT’S MEMORANDUM IN SUPPORT OF ITS MOTION TO COMPEL
COMPLIANCE WITH DISCOVERY REQUESTS**

I. INTRODUCTION

Pursuant to 46 CFR §502.69, §502.150, and §502.141, Complainants Ports America Chesapeake, LLC (hereafter referred to as “PAC”), and Marine Terminals Corporation-East (hereafter referred to as “MTCE”) have failed to comply with Respondent APS East Coast, Inc.’s (“APS”) discovery requests. Accordingly, Respondent APS hereby moves for an Order compelling disclosures and discovery from Complainants.

II. BACKGROUND AND CERTIFICATION PURSUANT TO 46 C.F.R.

§502.150(a)(2)(i)

The parties exchanged discovery requests on September 29, 2023, in accordance with the Scheduling Order (Doc. 16). The parties then mutually worked on a Confidentiality Stipulation which necessitated a delay in the exchange of discovery responses until November 10, 2023, when the parties were able to exchange the necessary responses.

With respect to the required certification under 46 C.F.R. §502.150(a)(2)(i), the undersigned attorney certifies that counsel for Respondent and counsel for Complainants met and conferred in good faith on December 6, 2023 between 10:00 am and 12:30 pm to discuss the discovery disputes between them and in an attempt to avoid the necessity of the subject Motion. However, disputes remain. The parties met again on December 18, 2023 before the Hon. Chintella for a discovery conference to see if the outstanding issues could be resolved. While some items were resolved, the parties' positions with respect to several items, further outlined below, remained unchanged, necessitating the subject Motion to Compel Compliance with Discovery Requests.

III. MOTIONS TO COMPEL COMPLIANCE WITH DISCOVERY REQUESTS

Under the Federal Maritime Commission ("FMC") Rules, 46 CFR §502.150(a)(1), a party may bring a Motion to Compel Compliance with Discovery Requests if a corporation or other entity fails to make a designation of an individual who will testify on its behalf, a party fails to answer an interrogatory, a party fails to respond that inspection will be permitted, or fails to permit inspection, as requested under § 502.146. A failure to make a disclosure, answer, or respond includes an evasive or incomplete disclosure, answer, or response.

IV. DUTY TO DISCLOSE; SCOPE OF DISCOVERY

With respect to the general scope of discovery and in accordance with 46 CFR §502.141(e)(1), parties are permitted to obtain discovery regarding any nonprivileged matter that

is relevant to any party's claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence.

A. Interrogatories

With respect to Interrogatories, they may relate to any matter that may be inquired into under 46 C.F.R. §502.141(e) and (f)¹ and must, to the extent it is not objected to, be answered separately and fully in writing under oath.²

B. Request for Production

With respect to Requests for Production, a party may serve on any other party a request within the scope of § 502.141(e) and (f).³

C. Requests for Admissions

With respect to Requests for Admission, a party may serve on any other party a written request to admit, for the purposes of the pending action only, the truth of any nonprivileged relevant matters relating to facts, the application of law to fact, or opinions about either, and the genuineness of any described documents.⁴ If a matter is not admitted, the answer must specifically deny it or state in detail why the answering party cannot truthfully admit or deny it. A denial must fairly respond to the substance of the matter; and when good faith requires that a party qualify an answer or deny only a part of a matter, the answer must specify the part admitted and qualify or deny the rest. The answering party may assert lack of knowledge or information as

¹ 46 C.F.R. §502.145(a)(2)

² 46 C.F.R. §502.145(b)(3)

³ 46 C.F.R. §502.146(a)

⁴ 46 C.F.R. §502.147(a)(1)

a reason for failing to admit or deny only if the party states that it has made reasonable inquiry and that the information it knows or can readily obtain is insufficient to enable it to admit or deny.⁵ The requesting party may move for a determination of the sufficiency of an answer or objection. Unless the presiding officer finds an objection justified, the presiding officer must order that an answer be served. On finding that an answer does not comply with this rule, the presiding officer may order either that the matter is admitted or that an amended answer be served.⁶

V. OBJECTION ON THE BASIS OF RELEVANCE, OUTSIDE THE SCOPE OF PERMISSIBLE AND/OR DISCOVERABLE SUBJECTS, AND/OR NOT CAPABLE OF AN INTERROGATORY RESPONSE

Complainants' responses to Respondent's discovery requests are wholly deficient. Every single response to Respondent's Interrogatories and Request for Production were objected to as being overbroad, with most requests also being objected to as being unduly burdensome to some degree. The overwhelming majority of responses to Respondent's Request for Admissions were objected to as being vague and not capable of answer. While Respondent's disagree with Complainants' counsel with respect to the necessity of those objections, the single biggest substantive issue Respondent require this Court to address is Complainants' objections on the basis of relevance, outside the scope of permissible and/or discoverable subjects, and/or not capable of an interrogatory response. It is Respondent's position that subject to those objections, Complainants' modified stock objections would not prevent them from answering. However, to the extent those objections would prevent Complainants from answering, we request Complainants identify the relevant request.

⁵ 46 C.F.R. §502.147(a)(4)

⁶ 46 C.F.R. §502.147(a)(6)

With regard to the subject objections, Respondent has grouped the subject matters into four categories: A) Complainants' Safety and Efficiency Records, B) the Relationship Between Ports America Chesapeake LLC and Marine Terminals Corporation-East, C) Details of PAC's and MTCE's Stevedoring Operations, and D) Efforts Undertaken by Complainants to Negotiate or Deal with Respondent. Respondent has identified the deficient responses and their arguments below.

A. Complainants' Safety and Efficiency Records

Respondent APS East Coast, Inc. seeks information regarding Complainants' safety training program and vessel familiarization programs as well as any written policies and procedures for such a training program. This information was sought in Respondent's Interrogatory No. 1, and Request for Production Nos. 1, 8, & 9.

INTERROGATORY NO. 1: Describe in detail Complainant's safety training program and vessel familiarization for its stevedores and identify all written safety policies and procedures, including stevedore training procedures, auditing procedures, records, and reports; and any third-party review, auditing, or certifications of such safety training program, if any, and identify the persons responsible for such program.

RESPONSE: Complainant objects to Interrogatory No. 1 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's interrogatory with respect to Complainant's "safety training and vessel familiarization for its stevedores" is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).

REQUEST NO. 1: Provide all Documents related to Complainant's safety training program and vessel familiarization, including all written safety policies and procedures, and any Documents referenced or relied upon to answer Respondent's Interrogatory No. 1.

RESPONSE: Complainant objects to Request No. 1 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's Request with respect to Complainant's "safety training program and vessel familiarization" is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).

REQUEST NO. 8: Provide all Documents concerning the safety records of Complainant's stevedore operations in the Port of Baltimore between September 29, 2018 and September 29, 2023.

RESPONSE: Complainant objects to Request No. 8 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's Request with respect to Complainant's "safety records of Complainant's stevedore operations in the Port of Baltimore" is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).

REQUEST NO. 9: Provide all Documents concerning the efficiency and productivity of Complainant's stevedore operations in the Port of Baltimore between September 29, 2018 and September 29, 2023.

RESPONSE: Complainant objects to Request No. 9 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's Request with respect to Complainant's "efficiency and productivity of Complainant's stevedore operations in the Port of Baltimore" is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).

Respondent sought information regarding stevedoring accidents, Complainants' accident reporting systems, along with identifying any persons that would have knowledge of Complainants' stevedoring accidents or accident reporting system including injured persons. Respondent sought this information through Interrogatories Nos. 3 & 4, and Request for Production No. 2.

INTERROGATORY NO. 3: Identify all persons and entities that Complainant is aware have, or are likely to have, personal knowledge regarding Complainant's stevedoring accident reports or accident reporting system, including injured persons, managers, witnesses, and forepersons, and state the subject matter of the personal knowledge possessed, or likely to be possessed, by each such person or entity.

RESPONSE: Complainant objects to Interrogatory No. 3 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's interrogatory with respect to "stevedoring accident reports or

accident reporting system” is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).

INTERROGATORY NO. 4: Identify all actual or reported accidents or incidents resulting in damage or loss of property or personal injury or death or the imminent risk of such consequences (each, an “incident”) involving in any way any Ports America Affiliate or employees of any of Ports America Affiliate in the Port of Baltimore between September 29, 2018 and September 29, 2023, stating with regard to each such incident: (1) the specific Ports America Affiliate(s) involved, (2) the date of such incident, (3) the nature of such incident, (4) the cause of such incident, (5) the extent of any injury, damage, or loss involved in such incident, (6) the terminal location or other location of each such incident, (7) if related to the loading or discharging of a vessel, the vessel involved in or related to such incident, and (8) if a report was prepared regarding such incident, the date and report number of such report.

RESPONSE: Complainant objects to Interrogatory No. 4 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s interrogatory with respect to Complainant’s “accidents or incidents” is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).

REQUEST NO. 2: Provide all Documents and Communications sent by or received by Complainant, including its agents, employees, and insurers regarding all actual or reported stevedore accidents or injuries between September 29, 2018 and September 29, 2023 in the Port of Baltimore, including without limitation all Documents and Communications referenced or relied upon to answer Respondent’s Interrogatory No. 4.

RESPONSE: Complainant objects to Request No. 2 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s Request with respect to Complainant’s “stevedore accidents or injuries” is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).

Respondent further requested information on the efficiency and productivity metrics used by Complainants to measure or advertise their services. Respondent sought this information through its Interrogatory No. 16 and Request for Production No. 9.

INTERROGATORY NO. 16: Describe in detail all efficiency metrics Ports America uses to measure or advertise its stevedore operations at the Port of Baltimore.

RESPONSE: Complainant objects to Interrogatory No. 16 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding with respect to the subject of “efficiency metrics” and to the extent that it seeks information from or as to entities other than Complainant. Respondent’s interrogatory with respect to Complainant’s “efficiency metrics” is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).

REQUEST NO. 9: Provide all Documents concerning the efficiency and productivity of Complainant’s stevedore operations in the Port of Baltimore between September 29, 2018 and September 29, 2023.

RESPONSE: Complainant objects to Request No. 9 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s Request with respect to Complainant’s “efficiency and productivity of Complainant’s stevedore operations in the Port of Baltimore” is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).

The above topics are relevant to the proceedings and do not exceed the scope of relevant and discoverable information. The Complaint states that Complainants were not treated equally and that such unequal treatment by Respondent was not justified by legitimate transportation factors. Complainants further state that safety and efficiency records cannot be meaningfully distinguished from Respondent’s Preferred Stevedore (see Complaint ¶ 53 (a) & (b)).

Respondent disputes this claim and the topic of Complainants’ safety and efficiency is clearly linked with the reasonableness of Respondent’s actions under Count I and II of the Complaint. Accordingly, as the parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party’s claim or defense and it appears that Complainants intend to assert their safety and efficiency records as part of their claim and Respondent intends to assert the subject of Complainants’ safety and efficiency as part of their defense, the topic of Complainants’ safety and efficiency records are clearly relevant as well as a permissible topics under 46 CFR § 502.141(e), §502.145(a)(2), and §502.146(a).

Relatedly, Respondent requested that Complainants confirm that no safety or efficiency records had been sent to Respondent or Respondent's counsel. Respondent pursued this information through its Request for Admissions Nos. 6 & 7.

REQUEST NO. 6: Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant's safety records to Respondent or Respondent's counsel.

RESPONSE: Complainant objects to Request for Admission No. 6 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by "Complainant's safety records" and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges.

REQUEST NO. 7: Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant's efficiency records or metrics to Respondent or Respondent's counsel.

RESPONSE: Complainant objects to Request for Admission No. 7 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by "Complainant's efficiency records or metrics" and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges.

Complainants objected to these requests as outside the scope of permissible requests and therefore refused to admit or deny in response, despite the fact that such information is not privileged and relates to the factual interactions between the parties. These Requests for Admission go towards the establishing the facts as they relate to Count III of the Complaint, specifically with respect to Respondent's defense that Complainants failed to pursue negotiations despite Respondent's invitation to do so. Accordingly, such Requests are certainly relevant under §46 C.F.R. §502.147(a)(1), and capable of being admitted or denied by Complainants.

B. Relationship Between Ports America Chesapeake LLC and Marine Terminals Corporation-East

Respondent sought information regarding the corporate relationship *between* PAC and MTCE and requested that information through its Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11. Complainants objected on the basis of relevance for Request for Admission No. 3 to the extent Respondent sought "all Documents" related to the subject matter of the relationship between PAC and MTCE. Respondent however only requested Documents to the extent that Complainant referenced or relied upon them to answer Interrogatory No. 5.

REQUEST NO. 3: Provide all Documents, diagrams, and charts detailing the corporate relationship with respect to Ports America, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East including, without limitation, all Documents referenced or relied upon to answer Respondent's Interrogatory No. 5.

RESPONSE: Complainant objects to Request No. 3 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding, to the extent it seeks "all Documents" with respect to the subject matter of the request. Subject to and without waiver of the foregoing objections, Complainant responds that it will respond to Respondent's Interrogatory No. 5 sufficient to respond regarding the corporate relationship relevant to this proceeding and/or will responds that it will produce

responsive, non-privileged information in its possession, custody, or control located after a reasonable search sufficient to show the “corporate relationships of Ports America, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East.”

We note that Complainants did not object on the basis for relevance for Interrogatory No. 5, or Request for Admissions Nos. 10 & 11, which are copied below:

INTERROGATORY NO. 5: Describe in detail the corporate relationship between Ports America, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East and identify all facts, documents, organization charts, and witnesses confirming such relationships.

RESPONSE: Complainant objects to Interrogatory No. 5 as overbroad, unduly burdensome, duplicative of discovery sought via Respondent’s Requests for Admission Nos. 10 and 11, and requesting information not capable of an interrogatory response by Complainant, to the extent it seeks the identification “all facts, documents, organization charts, and witnesses confirming such relationships and entities.” Subject to and without waiving any of the foregoing objections, Complainant responds that (1) “Ports America” is a trade name, not a corporate entity, (2) Ports America Chesapeake, LLC, and Marine Terminals Corporation-East are separate legal entities, and (3) each entity is an indirect, wholly-owned subsidiary of Ports America Group, Inc.

REQUEST NO. 10: Admit that Ports America Chesapeake, LLC and Marine Terminal Corporation-East are separate legal entities.

RESPONSE: Admitted.

REQUEST NO. 11: Admit that Ports America Chesapeake, LLC and Marine Terminal Corporation-East are encompassed under the Ports America brand.

RESPONSE: Complainant objects to Request for Admission No. 11 as vague and ambiguous and not capable of an admission or denial with respect to what is meant by “encompassed under the Ports America brand.” To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant responds that Ports America Chesapeake, LLC and Marine Terminal Corporation-East are separate legal entities, with separate boards of directors. As set forth in responses to Interrogatory Nos. 5, 17 and 18, Ports America Chesapeake, LLC and Marine Terminal Corporation-East are both indirect, wholly owned subsidiaries of Ports America Group, Inc., but each of Ports America Chesapeake, LLC and Marine Terminal Corporation-East are separate corporate and commercial operations.

Respondent disputes that contention that Interrogatory No. 5 is duplicative of Requests for Admissions Nos. 10 & 11, and take issue with Complainants' answers above as being non-responsive for refusing to detail the relationship between PAC and MTCE. While Respondent appreciates that both Complainants are separate entities that are wholly-owned by Ports America Group Inc., at no time do Complainants detail the relationship between PAC and MTCE, contractual or otherwise. The relationship between the parties is necessary to determine the alleged degree of unreasonable preference, prejudice or disadvantage shown to PAC vs. MTCE (Count I), the claimed loss for each party as a result of Respondent's alleged unreasonable regulations and how any contractual relationships may have been effected (Count II), and the effort put in by each party individually with respect to their alleged attempts to negotiate or deal with Respondent (Count III).

Complainants have, since the initiation of this matter, referred to themselves collectively as Ports America, in both the Complaint and with nearly identical statements throughout their responses to Respondent's discovery requests. However, when the topic of damages arises, the responses diverge, with PAC alleging different business lost than MTCE in response to Respondent's Interrogatory No. 10. Accordingly, the relationship between Complainants and their respective relationship with Respondent is nonprivileged, and relevant to Respondent's defense in this matter.

C. Details of PAC's and MTCE's Stevedoring Operations

Respondent seeks information from Complainants on its operations and which Ports America affiliate performs stevedoring operations at which terminal, the type of cargo handled, and which Ports America affiliate has been designated a sole or preferred stevedore provider in the past several years. Respondent sought this information through its Interrogatories Nos. 7 & 8, and its Request for Production No. 15.

INTERROGATORY NO. 7: Identify all ports and terminals in North America at which any Ports America Affiliate, including Complainant, currently performs stevedoring operations; for each such port or terminal identifying: (1) the specific Ports America Affiliate(s) stevedoring provider at such port or terminal, (2) and the type of cargo which is loaded or unloaded at each listed terminal.

RESPONSE: Complainant objects to Interrogatory No. 7 as overbroad, compound, unduly burdensome, duplicative of Interrogatory No. 9, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's interrogatory with respect to Complainant's stevedoring operations in other terminals in North America outside of Baltimore, and Complainant's non-RoRo stevedoring operations within the Port of Baltimore (e.g., container stevedoring and breakbulk stevedoring), are not permissible interrogatory subjects in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2). Subject to and without waiving any of the foregoing objections, with respect to Complainant's RoRo stevedoring within the Port of Baltimore, Complainant refers Respondent to its response to Interrogatory No. 9.

INTERROGATORY NO. 8: Identify all ports and terminals in North America at which any Ports America Affiliate, including Complainant, has been the sole or preferred stevedoring provider in the past five years; for each such port or terminal identifying: (1) the specific Ports America Affiliate(s) acting as sole or preferred stevedoring provider at such port or terminal, (2) the type of cargo which is loaded or unloaded at each listed terminal, and (3) the reasons or justifications why such Ports America Affiliate(s) acts as sole or preferred stevedoring provider at such port or terminal.

RESPONSE: Complainant objects to Interrogatory No. 8 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's interrogatory with respect to whether Complainant or any Affiliate of Complainant "has been the sole or preferred stevedoring provider" in "terminals in North America" is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).

REQUEST NO. 15: Provide all Documents documenting, discussing, or concerning in any way the reasons or justifications why any Ports America Affiliate(s) acts as sole or preferred stevedoring provider at any port or terminal identified in response to Interrogatory No. 8.

RESPONSE: Complainant objects to Request No. 15 as overbroad, unduly burdensome, exceeding the scope of relevant, discoverable information in this proceeding, and to the extent that it seeks information protected by attorney-client communication, work-product, or other privilege.

Respondent sought information regarding Complainants' stevedoring contracts that it has with Ocean Carriers, and to identify the relevant terminals where those contracts are performed. Respondent sought this information through its Interrogatory No. 12.

INTERROGATORY NO. 12: Identify all current stevedoring contracts Complainant has with ocean carriers and the relevant terminals where those contracts are to be performed.

RESPONSE: Complainant objects to Interrogatory No. 12 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding, to the extent the interrogatory seeks information with respect to Complainant's stevedoring contracts outside of the Port of Baltimore, and non-RoRo stevedoring contracts within the Port of Baltimore (e.g., container stevedoring and breakbulk stevedoring), and/or terminals not related to this proceeding, which are not permissible interrogatory subjects in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2). Subject to and without waiving any of the foregoing objections, Complainant responds that it will answer this Interrogatory by producing non-privileged documents kept in the normal course of business in its possession, custody, or control pertaining to the subject of the Interrogatory.

Respondent sought information on the stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in Baltimore. Respondent sought this information through its Interrogatory No. 19, and its Request for Admissions Nos. 2, 3, 4, & 5.

INTERROGATORY NO. 19: Identify all stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in the Port of Baltimore.

RESPONSE: Complainant objects to Interrogatory No. 19 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's interrogatory with respect to stevedoring companies performing stevedoring at Seagirt Terminal is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).

REQUEST NO. 2: Admit that Complainant performs stevedoring work at Seagirt Terminal in the Port of Baltimore.

RESPONSE: Complainant objects to Request for Admission No. 2 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal in the Port of Baltimore.

REQUEST NO. 3: Admit that no stevedoring company that is not associated with Ports America is permitted to conduct stevedoring operations at Seagirt Terminal.

RESPONSE: Complainant objects to Request for Admission No. 3 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by a company that is “not associated with Ports America.” To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal in the Port of Baltimore.

REQUEST NO. 4: Admit that Complainant Ports America Chesapeake, LLC is the exclusive stevedore at Seagirt Terminal at the Port of Baltimore.

RESPONSE: Complainant objects to Request for Admission No. 4 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal.

REQUEST NO. 5: Admit that a Ports America Affiliate is the exclusive stevedore at Seagirt Terminal at the Port of Baltimore.

RESPONSE: Complainant objects to Request for Admission No. 5 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal (nor on the basis of its information and belief does an Affiliate of Complainant perform RoRo stevedoring work at Seagirt Terminal).

Respondent sought confirmation that Complainants and/or Ports America affiliates operate as stevedores at no fewer than seven terminals. Respondent sought this information through its Request for Admissions Nos. 21 & 22.

REQUEST NO. 21: Admit that Complainants operate as stevedores at no fewer than 7 terminals in the Port of Baltimore.

RESPONSE: Complainant objects to Request for Admission No. 21 as vague, ambiguous, duplicative, and beyond the scope of a permissible request for admission in this proceeding pursuant to FMC Rule 502.147(a)(1) to the extent that it seeks admission or denial as to entities other than Complainant and as to stevedoring other than RoRo stevedoring. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant responds by reference to Complainant's response to Request for Admission No. 12.

REQUEST NO. 22: Admit that Ports America Affiliates operate as stevedores at no fewer than 7 terminals in the Port of Baltimore.

RESPONSE: Complainant objects to Request for Admission No. 22 as vague, ambiguous, duplicative of Request for Admission No. 21, and beyond the scope of a permissible request for admission in this proceeding pursuant to FMC Rule 502.147(a)(1) to the extent that it seeks admission or denial as to entities other than Complainant and as to stevedoring other than RoRo stevedoring. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant responds by reference to Complainant's response to Request for Admission No. 21.

For context, Complainants limited their statements in response to Respondent's Request for Admission 12 to six terminals at which it performs **ro/ro** stevedoring.

Respondent sought information regarding the persons and entities involved in Complainants' stevedoring operations, any fact alleged in the Complaint and requested the subject matter of the information such person would possess or would be likely to possess. Respondent sought this information through its Interrogatory No. 2.

INTERROGATORY NO. 2: Identify all persons and entities that Complainant is aware have, or are likely to have, personal knowledge regarding Complainant's stevedoring operations, any fact alleged in the complaint, including managers, and forepersons, and state the subject matter of the personal knowledge possessed, or likely to be possessed, by each such person or entity.

RESPONSE: Complainant objects to Interrogatory No 2 as overbroad, unduly burdensome, duplicative, and requesting matters not capable of an interrogatory response by Complainant, to the extent it seeks the identification "all persons and entities" that are "likely to have []personal knowledge" with respect to the subject matter of the request. Subject to and without waiving any of the foregoing objections, Complainant responds by reference to the Initial Disclosures of Complainants, the Initial Disclosures of Respondent, and such other persons identified by the parties in discovery in this proceeding, including depositions, and in any pleadings and/or supplemental discovery responses in this proceeding.

Respondent notes that the only two persons identified by Complainants' Initial Disclosures were Mark Schmidt – Vice President and General Manager of Ports America Chesapeake, and Tim Beall – Operations Manager of “Ports America”.

Respondent sought further information on the roles and duties of the only two persons identified by Complainants as involved in its stevedoring operations at the Port of Baltimore. Respondent sought this information through its Interrogatory Nos. 23 & 24.

INTERROGATORY NO. 23: Identify and describe in detail the role of Mark Schmidt regarding stevedoring operations at the Port of Baltimore for both Complainants.

RESPONSE: Complainant objects to Interrogatory No. 23 as overbroad, and as exceeding the scope of relevant, discoverable information in this proceeding as to the Complainant and as to stevedoring operations other than RoRo operations at relevant terminals in the Port of Baltimore, which are in excess of what is required pursuant to FMC Rule 145. Subject to and without waiver of the foregoing objections, Complainant responds that Mark Schmidt is the General Manager and Vice President of Ports America Chesapeake, LLC and is responsible for stevedoring and terminal activities and for financial tracking for Ports America Chesapeake, LLC in Baltimore and is involved with other RoRo stevedoring and terminal activities in Baltimore generally with respect to matters relevant in this proceeding, including [sic] as to Marine Terminals Corporation-East.

INTERROGATORY NO. 24: Identify and describe in detail the role of Tim Beall regarding stevedoring operations at the Port of Baltimore for both Complainants.

RESPONSE: Complainant objects to Interrogatory No. 24 as overbroad, and as exceeding the scope of relevant, discoverable information in this proceeding as to the Complainant and as to stevedoring operations other than RoRo operations at terminals in the Port of Baltimore relevant to this proceeding, which are in excess of what is required pursuant to FMC Rule 145. Subject to and without waiver of the foregoing objections, Complainant responds that Tim Beall was the Operations Manager for Marine Terminals Corporation-East until June 2023, responsible for stevedoring and terminal activities for Marine Terminals Corporation-East in Baltimore and is involved with other RoRo stevedoring and terminal activities in Baltimore generally with respect to matters relevant in this proceeding, including as to Ports America Chesapeake, LLC.

Complainants have refused to answer or given evasive or non-responsive answers to any question beyond the Port of Baltimore, and with respect to any type of cargo stevedoring that is not auto or ro/ro stevedoring. We consider the topic of Complainants' operations, the terminals

they stevedore, their status as preferred or sole stevedore - including at Seagirt Terminal in Baltimore - to be incredibly relevant to the issue of whether Respondent's preferences and practices (Count I and II) are reasonable under the Shipping Act. Respondent attempted to identify additional persons who may have information relevant to the proceeding, however Complainants refused to identify any additional persons and have given evasive answers with respect to the roles and duties of the only two persons identified. This is further complicated by the vague answer with respect to Tim Beall's employment and/or role subsequent to June 2023.

The parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense. The information requested regarding the extent of Ports America's operations and the roles and duties of its personnel are calculated to lead to the discovery of admissible evidence and relevant to Respondent's defenses in this matter. Accordingly, the above topics are relevant and permissible topics under 46 CFR § 502.141(e), §502.145(a)(2), §502.146(a) and §502.147(a)(1).

D. Efforts Undertaken by Complainants to Negotiate or Deal with Respondent

Respondent sought to narrow the issues in the present litigation with respect to Count III of the Complaint. Respondent attempted to do this by requesting Complainant identify all efforts made to negotiate with Respondent for designation as a preferred stevedore at Respondent's Baltimore Terminal (Respondent's Interrogatory No. 25), and by requesting confirmation that no safety or efficiency records had been sent by Complainants (Respondent's Requests for Admission Nos. 6 & 7).

INTERROGATORY NO. 25: Identify and describe all efforts made by Complainant to negotiate with Respondent for designation as a preferred stevedore at Respondent's Atlantic or Chesapeake terminals in the Port of Baltimore.

RESPONSE: Complainant objects to Interrogatory No. 25 as overbroad, vague, ambiguous, premised on mischaracterizations of facts and circumstances not capable of an interrogatory response by Complainant, requesting information which is in excess of what is required pursuant to FMC Rule 145, and to the extent that it seeks information protected by attorney-client communication, work-product, or other privilege. Subject to and without waiver of the foregoing objections, Complainant responds by reference to the allegations in the Verified Complaint in this proceeding, including the allegations that Respondent did not contact Complainant concerning its alleged “competitive bidding process” at any time prior to the November 1, 2022 AMPORTS announcement. In addition, Complainant will further answer this Interrogatory by producing non-privileged documents kept in the normal course of business in its possession, custody, or control pertaining to the subject of the Interrogatory. Complainant further responds that it reserves the right to rely on Documents, Communications, information and other evidence produced and obtained in discovery in this proceeding, including depositions, and in any pleadings and/or supplemental discovery responses in this proceeding.

REQUEST NO. 6: Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant’s safety records to Respondent or Respondent’s counsel.

RESPONSE: Complainant objects to Request for Admission No. 6 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by “Complainant’s safety records” and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges.

REQUEST NO. 7: Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant’s efficiency records or metrics to Respondent or Respondent’s counsel.

RESPONSE: Complainant objects to Request for Admission No. 7 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by “Complainant’s efficiency records or metrics” and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records,

or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges.

Complainants have refused to respond to the Requests for Admission, and have failed to provide a responsive answer identifying the efforts taken by Complainants to negotiate with Respondent for designation as a preferred stevedore at Respondent's Atlantic or Chesapeake terminals in the Port of Baltimore. The requested information is not privileged and relates to the factual interactions between the parties. These requests and interrogatory go towards the establishing the facts as they relate to Count III of the Complaint, specifically with respect to Respondent's defense that Complainants failed to pursue negotiations despite Respondent's invitation to do so, and are not beyond what is required by 46 C.F.R. §502.145. In addition, the Requests are by no means beyond the scope of permissible requests under §46 C.F.R. §502.147(a)(1), as they relate the facts surrounding the interactions between the parties and are capable of being admitted or denied by Complainants.

VI. AWAITING PRODUCTION

In addition to the issues outlined above, Complainants have advised through their discovery responses and counsel, that they will produce documents and responses on a range of items. No supplemental responses or documents have yet been received. This includes the following items:

- Persons that have knowledge of Complainants' stevedoring operations (Respondent's Interrogatory No. 2)

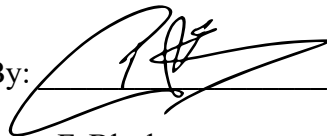
- Quantity of auto and ro/ro cargo broken down by month and terminal for 2019 through 2023 (Respondent's Request for Production No. 5; Interrogatory No. 9)⁷
- Diagram of the corporate relationship between Complainants (Respondent's Request for Production No. 3)
- Documents and evidence of Complainants' alleged damages and alleged effect of Respondent's actions (Respondent's Request for Production No. 6; Interrogatory Nos. 10, 11, 12, & 13; Request for Production Nos. 11, 12, & 13)

VII. CONCLUSION

For the foregoing reasons, and pursuant to 46 CFR §502.69, and §502.150, Respondent APS East Coast, Inc. respectfully moves for an Order Compelling Compliance with its above-outlined Discovery Requests and for the production of outstanding documents and answers and the granting all such other and further relief as may be just and proper.

Dated: December 27, 2023

Respectfully Submitted,

By: 

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⁷ A spreadsheet detailing the auto ro/ro cargo moved, broken down by Complainant, year, and customer has been provided, however three terminals have been lumped together (Fairfield, Atlantic, and Chesapeake) and no response with respect to available data and monthly totals has been provided to date.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Alex M. Chintella - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Gerald A. Morrissey III - *Counsel for Complainants*
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4. Kristine O. Little - *Counsel for Complainants*
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Dated: December 27, 2023

Respectfully Submitted,

By: _____

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